

Complaint Report (CCRB)

CCRB Case No :	201910492	C/V Report Date :	Thu, 12/05/2019 06:52 PM
Complaint Type :	CCRB	Investigator :	Conor O'Shea
Complaint Made At :	CCRB	Ref. No	1-1-5636397
Received Date (CCRB) :	Thu, 12/05/2019 06:52 PM	Mode :	On-line website
Incident Date(s) :	Thu, 12/05/2019 3:45 PM		
Place of Occurrence:	[REDACTED]	Precinct:	32
Location :	Street/highway	Boro:	Manhattan
Reason for Initial Contact :	Other		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
	Officers	Subject Officer	[REDACTED]			Vehicle search - (A) Complainant Uncooperative
	Officers	Subject Officer	[REDACTED]			Seizure of property - (A) Complainant Uncooperative
	Officers	Subject Officer	[REDACTED]			Search (of person) - (A) Complainant Uncooperative
	Officers	Subject Officer	[REDACTED]			Search (of person) - (A) Complainant Uncooperative
	Officers	Subject Officer	[REDACTED]			Stop - (A) Complainant Uncooperative
	Officers	Subject Officer	[REDACTED]			Stop - (A) Complainant Uncooperative

	Officers	Subject Officer	██████████			Refusal to provide name - (A) Complainant Uncooperative
POM	Brandon Gembecki	Subject Officer	██████████	White	544	Vehicle search - (A) Complainant Uncooperative
POM	Brandon Gembecki	Subject Officer	██████████	White	544	Stop - (A) Complainant Uncooperative
POM	Brandon Gembecki	Subject Officer	██████████	White	544	Stop - (A) Complainant Uncooperative
POM	Brandon Gembecki	Subject Officer	██████████	White	544	Refusal to provide name - (A) Complainant Uncooperative
POM	Victor Nunez	Subject Officer	██████████	Hispanic	544	Vehicle search - (A) Complainant Uncooperative
POM	Victor Nunez	Subject Officer	██████████	Hispanic	544	Stop - (A) Complainant Uncooperative
POM	Victor Nunez	Subject Officer	██████████	Hispanic	544	Stop - (A) Complainant Uncooperative
POM	Victor Nunez	Subject Officer	██████████	Hispanic	544	Refusal to provide name - (A) Complainant Uncooperative

Initial Complaint Narrative

ON THURSDAY, DECEMBER 5, 2019, AT APPROXIMATELY 6:51 P.M., ██████████ FILED THIS COMPLAINT ON THE CCRB'S WEBSITE. ON THURSDAY, DECEMBER 5, 2019, AT APPROXIMATELY 3:58 P.M., MR. ██████████ WAS SEATED IN HIS PARKED VEHICLE--THE ENGINE OF WHICH WAS NOT RUNNING--IN FRONT OF HIS MOTHER'S BUSINESS AT ██████████ IN MANHATTAN WITH HIS KEYS OUT OF THE CAR, ALONG WITH AN UNIDENTIFIED FRIEND AS THEY WAITED FOR MR. ██████████'S WIFE TO LEAVE HIS MOTHER'S STORE. PO1-PO4, IN AN UNMARKED VEHICLE, APPROACHED MR. ██████████'S VEHICLE AND IMMEDIATELY OPENED THE DOORS. AS THEY DID SO, THEY ORDERED MR. ██████████ AND HIS FRIEND TO EXIT THE VEHICLE, AND THEY COMPLIED. THE OFFICERS SEARCHED MR. ██████████'S VEHICLE WITHOUT HIS CONSENT. THEY ALSO SEARCHED HIS PERSON AND HIS FRIEND. NO CONTRABAND WAS RECOVERED. MR. ██████████'S PARENTS WITNESSED THIS INCIDENT. THE OFFICERS TOOK MR. ██████████'S IDENTIFICATION--AN EBT FOOD STAMP CARD-- AND DID NOT RETURN IT TO HIM. MR. ██████████ ASKED THE OFFICERS FOR THEIR NAMES, BUT THEY REFUSED TO PROVIDE THE REQUESTED INFORMATION. MR. ██████████ TOOK ONE PHOTOGRAPH OF ONE OF THE OFFICERS, AND ALSO PROVIDED LICENSE PLATE ██████████.

Witness
